



CHAPTER xxxi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dumfries and Maxwelltown Burghs Amalgamation. A.D. 1929.
[10th May 1929.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Dumfries and Maxwelltown Burghs Amalgamation Order Confirmation Act 1929. Short title.

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SCHEDULE.

DUMFRIES AND MAXWELLTOWN BURGHS
AMALGAMATION.

Provisional Order to amalgamate the burghs of Dumfries and Maxwelltown into one burgh to extend the boundaries of the county of Dumfries and for other purposes.

WHEREAS the royal burgh of Dumfries (hereinafter called "the burgh of Dumfries") received a royal charter dated twenty-third April thirteen hundred and ninety-five (bearing to be in confirmation of previous charters and confirmed and extended by later charters) and lies along the east bank of the river Nith in the county of Dumfries :

And whereas the burgh of Maxwelltown was erected into a burgh of barony in 1810 and lies along the west bank of the river Nith in the county of the Stewartry of Kirkcudbright :

And whereas the burgh of Dumfries and the burgh of Maxwelltown (hereinafter called "the two burghs") are now managed and administered under the provisions of the Burgh Police (Scotland) Acts 1892 to 1911 the Town Councils (Scotland) Act 1900 the Public Health (Scotland) Act 1897 and the Acts amending and extending those Acts :

And whereas the provost magistrates and councillors of the burgh of Dumfries are the local road and sanitary authority of the said burgh :

And whereas the provost magistrates and councillors of the burgh of Maxwelltown are the local road and sanitary authority of the said burgh :

And whereas important municipal undertakings are administered jointly for behoof of the inhabitants of the two burghs :

And whereas in consequence of the community of interests existing between the two burghs and of their proximity and of their forming practically one centre of population and of the number of municipal undertakings already jointly administered by the two burghs it is

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expedient and in the public and local interest that they should be under one authority and should be amalgamated and incorporated to form one united burgh and that all powers jurisdictions privileges and authorities of the magistrates and town council of the burgh of Maxwelltown as such and as the local authority therein should subject to the provisions of this Order vest in and be exerciseable by the provost magistrates and councillors of the said united burgh (who are hereinafter referred to as "the Corporation" and "the united burgh" respectively) for the purposes of all burghal administration and of all municipal public health roads and other Acts relating to the administration of burghs : A.D. 1929.
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And whereas it is expedient that the boundaries of the burgh of Dumfries should be extended and should comprise and include the existing burgh of Dumfries and the royalty thereof and the existing burgh of Maxwelltown all as shown on the map hereinafter mentioned and that all franchises rights privileges and immunities of the burgh of Dumfries and the royalty thereof and the powers jurisdictions authorities and privileges of the provost magistrates and councillors and the burgh and dean of guild courts thereof and all other jurisdictions whatsoever should be extended over and be applicable to the whole lands and territory forming the united burgh and the royalty thereof and the inhabitants of the same and the provisions of all public and local Acts in force for the time being within or applicable to the existing burgh of Dumfries should as the same are amended by this Order be applied to the united burgh and the royalty thereof as so extended :

And whereas for the purposes of such amalgamation and extension it will be necessary that the burgh of Maxwelltown should be separated and disjoined from the county of the Stewartry of Kirkcudbright and that all matters of administration and management and all jurisdictions powers and authorities within the burgh of Maxwelltown should devolve upon and be vested in the Corporation or in the county council of the county of Dumfries or in the education authority of the county of Dumfries as by this Order provided and that the part of the united burgh consisting of the existing burgh of Maxwelltown should be included in and form part of the county of Dumfries :

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And whereas it is expedient that the part of the united burgh consisting of the existing burgh of Maxwelltown should be within the jurisdiction of the magistrates of the united burgh and of the quarter sessions of the county of Dumfries and of the commission of the peace thereof so far as applicable to the united burgh :

And whereas under the Dumfries and Maxwelltown Waterworks Acts 1850 to 1922 (hereinafter referred to as "the Water Acts") a body of public commissioners was created and incorporated under the name of the Dumfries and Maxwelltown Waterworks Commissioners for the purposes of supplying water to the two burghs and districts and places adjacent and the said commission consists of the town councils of the two burghs and of ratepayers of the two burghs :

And whereas it is expedient that the said commission should be dissolved and that the whole undertaking property rights powers duties authorities jurisdictions liabilities and obligations of the commission should be transferred to vested in and imposed on the Corporation and that the Corporation should be authorised to exercise subject to the provisions of this Order all powers authorities rights and jurisdictions now exercised or exerciseable by the commission in relation to the said undertaking :

And whereas it is expedient to abolish certain petty customs and dues presently authorised to be collected within the burgh of Dumfries and to provide for compensation therefor to the common good fund of the united burgh :

And whereas it is expedient that the bridge committee as in this Order defined and the several joint committees elected by the town councils of the two burghs should cease to exist and that their powers and duties should be exercised by the Corporation :

And whereas it is expedient that all mortifications hospitals endowments trusts charitable bequests or other grants held and administered by the magistrates of the existing burgh of Dumfries should be administered by the magistrates of the united burgh and should be made available to the inhabitants of the united burgh and that in particular without prejudice to the said generality the charitable institution known as Moorheads Hospital

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should be made available to the inhabitants of the united burgh and the representatives to the board of directors of the said hospital should be appointed by the Corporation in place of the representatives at present appointed by the town council of the existing burgh of Dumfries : A.D. 1929.

And whereas it is expedient that the town council of the united burgh should consist of twenty-seven members and that all rights powers functions privileges immunities duties and liabilities of the town councils of the two burghs and of the county council of the Stewartry of Kirkcudbright so far as such county council had such rights and others within the existing burgh of Maxwelltown should subject to the provisions of this Order be transferred to and vested in the town council of the united burgh :

And whereas it is expedient that the united burgh should be divided into wards and provision be made for the election of councillors for the said wards :

And whereas it is expedient that the gas and electricity undertakings at present belonging to and administered by the burgh of Dumfries should be transferred to the Corporation and that there should be transferred to the united burgh all property rights duties debts and obligations at present belonging to or due by the existing burgh of Dumfries in respect of the said undertakings :

And whereas under the provisions of the Education (Scotland) Act 1918 the existing burgh of Maxwelltown has been included in the county of the Stewartry of Kirkcudbright and the existing burgh of Dumfries has been included in the county of Dumfries for educational purposes and whereas it is expedient and would be for public and local advantage that on and after the sixteenth day of May 1929 the existing burgh of Maxwelltown and on and after the appointed day the united burgh should be included in the educational area of the county of Dumfries :

And whereas it is expedient that the further powers hereinafter mentioned necessary for carrying out the purposes of this Order should be conferred upon the Corporation :

And whereas the town council of the existing burgh of Dumfries and the town council of the existing burgh of Maxwelltown are the joint promoters of this Order :

And whereas the purposes aforesaid cannot be effected without an order confirmed by Parliament under

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 (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained
in the last mentioned Act as read with the Secretaries of
State Act 1926 the Secretary of State orders as follows :—

PRELIMINARY.

Short title. 1. This Order may be cited as the Dumfries and
Maxwelltown Burghs Amalgamation Order 1929.

Commence- 2. This Order shall (except as otherwise hereinafter
ment of provided) commence and have effect on and from the
Order. date of the passing of the Act confirming this Order
which date is hereinafter referred to as “the commence-
ment of this Order.”

Interpreta- 3. In this Order (unless there be something in the
tion. subject or context inconsistent with or repugnant to
such construction) the following expressions shall have
the meanings assigned to them in this section :—

“The existing burgh of Dumfries” means the royal
burgh of Dumfries within the limits and bound-
aries thereof as existing immediately previous
to the commencement of this Order;

“The existing burgh of Maxwelltown” means the
burgh of Maxwelltown within the limits and
boundaries thereof as existing immediately
previous to the commencement of this Order;

“The two burghs” means the existing burgh of
Dumfries and the existing burgh of Maxwell-
town;

“The existing town council of Dumfries” means
the town council of the existing burgh of
Dumfries;

“The existing town council of Maxwelltown”
means the town council of the existing burgh
of Maxwelltown;

“The existing town councils” means the existing
town council of Dumfries and the existing town
council of Maxwelltown;

“The united burgh” means the existing burgh of
Dumfries and the existing burgh of Maxwelltown
as amalgamated by this Order;

“The Corporation” means the provost magistrates
and councillors of the united burgh;

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“The appointed day” means the date of the first election of councillors for the united burgh under this Order: A.D. 1929.
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Provided that for the purposes of the provisions of any Act passed in the present Session of Parliament dealing with the reconstitution of county councils the appointed day means the commencement of this Order;

“The Bridge Order” means the Dumfries and Maxwelltown Bridge Order 1925 and the “bridge committee” means the joint committee appointed under the Bridge Order;

“The Water Acts” means the Dumfries and Maxwelltown Waterworks Acts 1850 to 1922;

“The water commissioners” means the Dumfries and Maxwelltown Waterworks Commissioners created and incorporated under the Water Acts;

“The Burgh Police Acts” means the Burgh Police (Scotland) Acts 1892 to 1911 and any Acts hereafter to be passed amending or excluding the same;

“Election Acts” means the Acts in force for the time being relating to the registration of parliamentary and local government voters and the election of town councillors;

“The Public Health Acts” means the Public Health (Scotland) Act 1897 and any Acts amending or extending the same;

“The Town Councils Acts” means the Town Councils (Scotland) Act 1900 and any Acts amending or extending the same;

“Valuation Acts” means the Valuation of Lands (Scotland) Act 1854 and any Acts amending or extending the same;

“Joint committees” includes (1) the committee constituted by agreement between the existing town councils of dates 4th and 8th June 1908 for the management of the Dumfries and Maxwelltown Combination Hospital for Infectious Diseases (2) the Dumfries and Maxwelltown Fire Brigade Committee constituted by the agreement between the existing town councils of dates 13th and 24th August 1923 and (3) the Dumfries and Maxwelltown McKie Baths and

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- Washhouses Committee constituted by agreement between the existing town councils of dates 12th and 30th June 1908;
- “Provost” means the provost of the united burgh;
- “Magistrates” means the magistrates of the united burgh and includes the provost and bailies;
- “Powers” includes rights authorities jurisdictions capacities privileges and immunities;
- “Property” means and includes all property heritable and moveable real and personal and all estates common good feu duties ground annual interests servitudes and rights in to and out of such property including things forming the subject of action claim or process and all debts sums of money annual or other payments due and to become due and payable whether under royal or barony charter Act of Parliament agreement or otherwise and all maps plans registers and books and all other documents;
- “Registration officer” means the registration officer of the existing burgh of Dumfries and the registration officer of the existing burgh of Maxwelltown or of the united burgh as the case may be acting under the Representation of the People Act 1918;
- “The sheriff” means the sheriff of Dumfries and Galloway and (except where expressly limited) includes his substitutes or any one of them within the jurisdiction of the sheriff court of Dumfries;
- “The county” means the county of Dumfries;
- “The stewartry” means the county of the Stewartry of Kirkcudbright;
- “Valuation roll” means the valuation roll made up in accordance with the Valuation Acts and any supplementary roll made up in accordance with the said Acts or with the Rating and Valuation (Apportionment) Act 1928.

BOUNDARIES AND WARDS.

Boundaries
of united
burgh.

4. On and after the appointed day the whole area within the boundaries of the two burghs shall subject to the provisions of this Order form one burgh for all purposes under the royal charters Town Councils Acts Burgh

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Police Acts Public Health Acts and other Acts relating to the administration of royal burghs and shall be called the burgh of Dumfries. A.D. 1929.
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5. A map of the united burgh of which twelve copies have been signed by Philip Francis Wood counsel to the Secretary of State under the Private Legislation Procedure (Scotland) Act 1899 shall within one month after the commencement of this Order be deposited as follows (that is to say) One copy with the town clerk of the existing burgh of Dumfries at his office one copy with the sheriff clerk of the county at his office in Dumfries one copy with the sheriff clerk of the stewartry at his office at Kirkcudbright one copy in the office of the clerk of the Parliaments House of Lords one copy in the Committee and Private Bill Office of the House of Commons one copy at the Scottish Office Whitehall one copy with the Registrar General of Births Deaths and Marriages in Scotland one copy with the Minister of Agriculture and Fisheries one copy with the Commissioners of Customs and Excise one copy with the Board of Trade one copy with the Minister of Transport and one copy with the Electricity Commissioners. Map of united burgh.

6. On and after the appointed day the existing burgh of Maxwelltown shall be and the same is hereby separated and disjoined from the stewartry and the boundary of the county is hereby extended to include therein the part of the united burgh consisting of the existing burgh of Maxwelltown. Disjunction of existing burgh of Maxwelltown from stewartry.

7. The united burgh shall be and is hereby divided into nine wards numbered consecutively the numbers and boundaries of which are respectively set forth and described in the schedule to this Order. Wards of the united burgh.

8. The rights of electing the town council of the united burgh on the date referred to in subsection (b) of the section of this Order the marginal note whereof is "Election of councillors of united burgh" shall be in and belong to all such persons as have or shall have within the existing burgh of Dumfries and the existing burgh of Maxwelltown respectively the qualifications for voting at municipal elections specified and described in the Election Acts and at every subsequent election shall be in and belong to all such persons as shall have within the united burgh those qualifications. Qualification of municipal electors.

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Provisions
as to valua-
tion roll.

9. The assessor for the existing burgh of Dumfries under the Valuation Acts shall at the same time as he makes up the valuation roll for the existing burgh of Dumfries for the year from Whitsunday nineteen hundred and twenty-nine to Whitsunday nineteen hundred and thirty make up a valuation roll for the existing burgh of Maxwelltown and the said assessor shall become the assessor for the united burgh.

Election of
councillors
of united
burgh.

10. (a) Subject to the provisions of this Order all the members of the existing town council of Dumfries and all the members of the existing town council of Maxwelltown shall on the first Tuesday of November nineteen hundred and twenty-nine or on such other date as may be fixed by the sheriff under the powers conferred by the section of this Order the marginal note of which is "Power to sheriff to sanction procedure with respect to elections" cease to hold their respective offices.

(b) On the first Tuesday of November nineteen hundred and twenty-nine or on such other date as may be fixed by the sheriff under the powers conferred by the section of this Order the marginal note of which is "Power to sheriff to sanction procedure with respect to elections" the electors in each of the wards into which the united burgh is by this Order divided shall elect three councillors from among the persons qualified to be councillors of the existing burgh of Dumfries or the existing burgh of Maxwelltown. The total number of councillors for the united burgh shall be twenty-seven and nine members shall form a quorum of the Corporation and such election and all subsequent elections shall be conducted and the whole procedure in connection with the election induction and tenure of and retirement from office of such councillors under the Election Acts and the election of the provost magistrates and other office bearers shall be regulated in all respects in the way and manner prescribed by the said Acts and this Order :

Provided that the Corporation shall at their first or second meeting and not later determine where necessary the order in which the councillors shall retire.

The number of magistrates of the united burgh shall be five of whom one shall be the provost.

(c) The first meeting of the Corporation shall be held at the town hall of the existing burgh of Dumfries

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at twelve o'clock noon upon the first Friday after the A.D. 1929.
said election.

(d) The notice to attend the said meeting shall be given by the returning officer appointed by this Order.

(e) The returning officer appointed by this Order shall preside during the proceedings for the election of provost and (if the person elected provost is not present) for the election of magistrates and while so presiding shall have a second or casting vote in the event of there being an equality of votes on any question.

(f) The first business to be transacted at the said meeting shall be the election of provost and so soon as a provost is elected the provost and councillors or if the provost is absent the councillors shall proceed to the election of magistrates.

(g) The returning officer shall vacate the chair on the election of a provost if the person elected provost is present and shall otherwise vacate the chair when the provost and magistrates have been elected.

(h) At the time and place fixed for the first meeting of the Corporation the person who immediately before the appointed day held the office of town clerk of the existing burgh of Dumfries shall be in attendance and shall furnish to the meeting such assistance or information as is within his power and knowledge and the said town clerk shall become and carry out the duties of town clerk of the united burgh.

(i) The person who immediately before the appointed day held the office of town chamberlain of the existing burgh of Dumfries shall become and from and after the first meeting of the Corporation shall carry out the duties of town chamberlain of the united burgh.

(k) The Secretary of State may after the commencement of this Order appoint an auditor or auditors (a) to audit the accounts of the two burghs for the period from the fifteenth day of May nineteen hundred and twenty-nine to the appointed day and (b) to audit the accounts of the united burgh for the period from the appointed day to the fifteenth day of May nineteen hundred and thirty.

11. The provost magistrates and councillors and other office bearers of the existing town council of Dumfries and the provost magistrates and councillors and other

Magistrates and councillors to retain office

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— holding office immediately before the commencement of
till successor this Order shall retain their several offices and continue
elected. to exercise the respective functions thereof until the
appointed day.

Power to
sheriff to
sanction
procedure
with
respect to
elections.

12. In the event of circumstances arising in connection with the first election of councillors magistrates or other office bearers of the united burgh which may render it necessary or expedient to postpone or vary any date prescribed by or in pursuance of the provisions of the Election Acts or this Order or make any other such variation or alteration the sheriff may on the application of the town clerk of the existing burgh of Dumfries or the town clerk of the existing burgh of Maxwelltown authorise such postponement or variation or such procedure as shall in the judgment of the sheriff be best fitted to meet the circumstances of the case and the whole procedure following upon such authority shall be valid and not challengeable.

Returning
officer.

13. The town clerk of the existing burgh of Dumfries whom failing the town clerk of the existing burgh of Maxwelltown whom failing any person to be appointed by the sheriff on the application of the provost of the existing burgh of Dumfries shall be the returning officer for the purposes of the said election on the appointed day.

Register of
electors.

14.—(1) For the purpose of the first election of councillors of the united burgh the registration officer for the county shall on or before the eleventh day of October nineteen hundred and twenty-nine prepare the register of electors by making such alteration or rearrangement of the register of electors prepared in May nineteen hundred and twenty-nine of the existing burgh of Dumfries and the existing burgh of Maxwelltown as may be necessary to accord with the wards of the united burgh set forth in the schedule to this Order and the registration officer for the stewartry shall give to the registration officer for the county access to use within the office of the registration officer for the stewartry all books and schedules necessary to enable him to make up his list of electors within that part of the united burgh.

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(2) From and after the date of the publication in terms of the provisions of the Election Acts of the register of electors for the year nineteen hundred and twenty-nine and notwithstanding anything to the contrary in those Acts contained the following provisions shall apply and have effect with respect to the registration of electors in the united burgh that is to say the duties falling to be performed by any registration officer acting under the said Acts in the united burgh shall be performed by the registration officer for the united burgh : A.D. 1929.
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Provided that so long as any area comprised in the united burgh shall form part of the parliamentary constituency of Galloway the register of electors prepared by the registration officer for the united burgh and applicable to such area shall be held to be and shall be accepted as part of the register of parliamentary electors for the parliamentary constituency of Galloway and the cost of preparing such register shall be borne by the united burgh and by the stewartry in such proportions as failing agreement shall be determined by the Secretary of State. If any question shall arise as to the application and operation of this section such question shall be referred to the Secretary of State whose decision shall be final.

15. The Corporation shall yearly so long as any part of the united burgh shall continue to be part of the county or part of the constituency of Galloway for the purposes of parliamentary elections pay to the county council of the county and the county council of the stewartry respectively such proportion of the expenses payable by the Corporation for the registration of parliamentary electors in the county and the stewartry as shall be applicable to the parts of the united burgh contained in the county and the constituency of Galloway respectively. Expense of registration of votes.

PROPERTY.

16. Subject to the provisions of this Order all the property vested in held by or due to the existing town council of Dumfries shall on and after the appointed day be by virtue of this Order transferred to vested in and held by and be due and belong to the Corporation and shall form part of the property of existing burgh of Dumfries vested in Corporation.

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A.D. 1929. and assets of the united burgh for the good of all the inhabitants of the said burgh and the powers duties debts liabilities and obligations of the existing town council of Dumfries shall with respect to such property be transferred and attach to the Corporation and shall form part of the powers duties debts liabilities and obligations of the united burgh and be enjoyed exercised paid discharged and performed by the Corporation.

Property
of existing
burgh of
Max-
welltown
vested in
Corpora-
tion.

17. Subject to the provisions of this Order all the property vested in held by or due or belonging to the existing town council of Maxwelltown shall on and after the appointed day be by virtue of this Order transferred to vested in and held by and be due and belong to the Corporation as such property would if within or applicable to the existing burgh of Dumfries belong to or be comprised in the administration of the Corporation and shall form part of the property and assets of the united burgh for the good of all the inhabitants of the united burgh and the powers duties rights liabilities debts and obligations of the existing town council of Maxwelltown shall with respect to the property so transferred be transferred and attach to the Corporation and shall form part of the powers duties rights liabilities debts and obligations of the united burgh and be enjoyed exercised paid discharged and performed by the Corporation.

As to
vesting of
property
transferred
to Corpora-
tion &c.

18. All property transferred to or vested in the Corporation or the county council of the stewartry or the education authority of the stewartry or the county by virtue of this Order shall vest in them respectively without the necessity of recording in the register of sasines any conveyance or notarial instrument or notice of title or other deed or writing but for the purpose of enabling the Corporation or the said county council or the said education authority to complete a title if thought fit to any property transferred to or vested in them respectively by virtue of this Order by expediting a notarial instrument or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such property to and in favour of the Corporation or the said county council or the said education authority as the case may be.

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19. On and after the appointed day the Corporation and the provost magistrates and the dean of guild court of the united burgh and their respective courts shall have possess and exercise the same jurisdiction powers rights functions privileges immunities and obligations authorities and powers respectively over the united burgh and the royalty thereof and over the inhabitants thereof as the provost magistrates and dean of guild court of the existing burgh of Dumfries now have enjoy possess and exercise in their several characters and capacities within the existing burgh of Dumfries and the royalty thereof and that whether at common law or by royal charter or by statute or otherwise including all powers of borrowing imposing levying collecting and recovering assessments rates and charges.

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 Jurisdic-
 tion of
 provost
 magis-
 trates and
 councillors
 and dean
 of guild.

20. On and after the appointed day subject to the provisions of this Order and in so far as is necessary to give full effect thereto all separate magistracies councils commissions and authorities and all rights and functions heretofore exercised or exerciseable by any town council commissioners county council district committee local authority or any other authority within or over the existing burgh of Dumfries or the existing burgh of Maxwelltown or any part thereof (with the exception of such rights and functions as are at present exercised by any such county council district committee local authority or any other authority within the existing burgh of Dumfries) shall so far as affecting the purposes of this Order cease and determine on and after the appointed day and the several persons by whom such offices were held shall be freed and discharged from all liabilities which may attach to them in connection with these offices provided that all actions or processes both in civil and criminal causes in dependence before the courts of such jurisdiction shall be adjudged and disposed of by the magistrates of the united burgh to whom all such actions and processes shall according to the subject matter thereof by authority of this Order be transferred.

Separate
 jurisdic-
 tions extin-
 guished.

21. Except so far as in this Order otherwise provided the county council of the stewartry shall until the fifteenth day of May nineteen hundred and thirty continue to perform such duties and provide such

Provision
 of police in
 part of
 united
 burgh con-

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sisting of
existing
burgh of
Maxwell-
town.

police force and other services within and for that part of the united burgh which consists of the existing burgh of Maxwelltown as immediately prior to the commencement of this Order they performed and provided within the existing burgh of Maxwelltown and shall on or before the fifteenth July nineteen hundred and twenty-nine certify to the existing town council of Maxwelltown the cost of such duties and services and the said town council shall pay to the county council the amount so certified.

Applica-
tion of Acts
to united
burgh.

22. Except so far as they are inconsistent with or varied by the provisions of this Order the provisions of all local and personal Acts and all public general Acts already passed which relate to or apply or are in force in or may be made applicable to the existing burgh of Dumfries and to the inhabitants thereof shall apply to the united burgh and to the inhabitants thereof.

Transfer of
mortifica-
tions &c.

23. All mortifications hospitals endowments trusts however constituted charitable bequests or other grants held or administered by the provost magistrates and councillors or by the magistrates in any capacity whether of the existing burgh of Dumfries or the existing burgh of Maxwelltown separately or conjunctly shall subject to the conditions and provisions under and upon which the same are conferred granted or settled be held by vested in and administered by the provost magistrates and councillors or by the magistrates as the case may be of the united burgh and in the case of mortifications hospitals endowments trusts charitable bequests and other things administered by such provosts magistrates and councillors or magistrates respectively in conjunction with others or by members of their own body or other persons elected by the provost magistrates and councillors or the magistrates as the case may be of the existing burgh of Dumfries or the existing burgh of Maxwelltown the Corporation shall in all respects have the same rights powers and privileges as the provost magistrates and councillors or the magistrates of the existing burgh of Dumfries and the provost magistrates and councillors or the magistrates of the existing burgh of Maxwelltown or both or either of them had before the commencement of this Order Where the conditions or provisions under which any mortifications hospitals endowments trusts

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or other grants are held or administered as defined in this section limit the benefits to be conferred to persons born in or resident in only one of the two burghs persons born or resident within the boundaries of either of the two burghs shall be entitled to the said benefits and persons born in the united burgh shall be entitled to the said benefits. A.D. 1929.
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24. The Corporation shall exercise all privileges rights and duties of the existing town council of Dumfries in relation to the administration of the charitable institution known as Moorheads Hospital and all benefits of the said hospital and the funds belonging thereto open prior to the commencement of this Order to persons born or residing in the existing burgh of Dumfries shall from and after the commencement of this Order be open to persons born or resident (whether before or after the commencement of this Order) within the boundaries of the united burgh. Moorheads Hospital.

25.—(1) The financial adjustment between the Corporation and the county council of the stewartry consequent upon the inclusion within the boundaries of the united burgh and the county of the existing burgh of Maxwelltown shall be made upon the basis of the provisions of the Local Government (Adjustments) (Scotland) Act 1914 and in accordance with the rules contained in the schedule to that Act and section 50 of the Local Government (Scotland) Act 1889 as applied by section 96 of the Burgh Police (Scotland) Act 1903 shall apply and have effect upon the amalgamation of the existing burghs by this Order and any average annual increase of burden so arrived at shall be capitalised upon the basis of the maximum number of years mentioned in the said schedule namely fifteen years and any dispute or difference arising in connection with such adjustment shall be settled by arbitration by an arbiter to be agreed upon or failing agreement to be appointed by the Secretary of State on the application of the town councils or either of them or the Corporation or the county council of the stewartry and such sum as shall be due in respect of the said adjustment shall be payable on the fifteenth day of May nineteen hundred and thirty with interest thereon at the rate of five pounds per centum per annum from the said fifteenth day of May nineteen hundred Financial and other adjustments with county council of stewartry.

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A.D. 1929. and thirty until paid The said sum and interest thereon
— if any shall be applied by the said county council
with the sanction of the Secretary of State either in
repayment of debt or for such other purposes as the
county council may determine :

Provided that in arriving at the sum due in
respect of the said adjustment there shall be debited
against the county council of the stewartry the pro-
portion of the capital cost of the police buildings at
Maxwelltown which has been paid to the said county
council by the special police district which consists
of the existing burgh of Maxwelltown deducting however
from the said proportion of the said capital cost the
proportion applicable to the said special police district
of the sum received from the supplementary Government
contribution in respect of the loan on the said police
buildings.

(2) Five constables who on the fifteenth day of
May nineteen hundred and thirty belong to the police
force of the stewartry and are posted to the said special
police district shall on and after that date become
constables of the police force of the united burgh and
the Corporation shall be liable in all future payments
in respect of pensions gratuities and allowances to
the said constables or their widows or children.

OFFICIALS.

Existing
officers and
servants.

26.—(1) The persons who at the commencement
of this Order are officers or servants of the existing
town council of Dumfries or the existing town council
of Maxwelltown or of the water commissioners or of
the bridge committee or of any of the joint committees
and who perform any duties in respect of such employ-
ment shall on and after that date unless and until
otherwise determined by the existing town councils
or either of them continue to discharge their respective
duties as officers or servants of the two burghs respec-
tively until the appointed day and shall then become
officers or servants of the Corporation Provided that
any transferred officer who within two years after the
appointed day is required to perform duties which
are not analogous to or which are an unreasonable

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addition to those which he was required to perform immediately before the appointed day may relinquish his office and shall not thereby lose his right to claim compensation under this Order. A.D. 1929.
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(2) Every officer or servant so transferred shall hold his office by the same tenure and upon the same terms and conditions as if this Order had not been confirmed and while performing analogous duties to those which he was required to perform immediately before the appointed day shall receive not less salary or remuneration and be entitled to not less pension (if any) than the salary remuneration or pension to which he would have been entitled if this Order had not been passed.

(3) The Corporation may distribute the business to be performed by the transferred officers and servants in such manner as the Corporation may think proper and every officer or servant shall perform such duties in relation to that business as may be directed by the Corporation and the Corporation may abolish the office of any officer.

27. Except as in this Order otherwise provided— Compensation.

(1) Every officer or servant declared by this Order to be entitled to compensation and every other officer or servant who by virtue of anything done in pursuance or in consequence of this Order suffers any direct pecuniary loss by abolition of his office or by diminution or loss of salary or fees (except those officers or servants who by the terms of their appointment are precluded from claiming compensation) shall be entitled to have compensation paid to them for such loss by the Corporation regard being had to all the circumstances of the case :

(2) Every person who is entitled to compensation under this section shall failing agreement between him and the Corporation or the existing town councils or either of them deliver to the Corporation a detailed statement of his claim with all relevant and necessary particulars and the Corporation

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shall forthwith take the same into consideration assess the amount of compensation (if any) and inform the claimant of their decision provided that it shall not be competent for any person to make any claim for compensation after the expiration of two years from the commencement of this Order or in the case of an officer or servant who accepts office under the Corporation and who relinquishes office under the proviso to subsection (1) of the section of this Order the marginal note of which is "Existing officers and servants" after twelve months from the date at which such officer or servant shall relinquish office :

- (3) If any such officer or servant is aggrieved by a decision of the Corporation the compensation shall (except as may be otherwise agreed between any such officer or servant and the Corporation) be ascertained by an arbiter to be nominated by the Secretary of State on the application of either party :
- (4) The sum payable as compensation to any claimant shall at the option of the claimant be payable either by way of a capital sum or by way of an annuity or partly by way of a capital sum and partly by way of an annuity and shall be payable or commence to be payable not later than the expiration of three months after the date of the decision of the Corporation or the arbiter granting the compensation and shall if payable by way of a capital sum bear interest at the rate of six per centum per annum from the date of the termination of the salary or employment and if by way of annuity be calculated from that date and such capital sum and interest or annuity as the case may be shall be a debt due from the Corporation and may be enforced accordingly in like manner as if the Corporation had entered into a bond to pay the same :

- (5) If any person receiving compensation under this section is appointed to any office under the Corporation or if by virtue of anything done in pursuance or in consequence of this Order he receives any increase of emoluments of the office held by him he shall not while receiving the emoluments of that office receive compensation to a greater amount (if any) than with the emoluments of the said office is equal to the emoluments for which compensation was granted to him and if the emoluments of the office he holds are equal to or greater than the emoluments for which compensation was granted his compensation shall be suspended while he holds such office : A.D. 1929.
- (6) No compensation payable under this section to any person shall exceed the amount to which such person would have been entitled under the Acts and rules relating to His Majesty's Civil Service which were in operation at the date of the passing of the Local Government (Scotland) Act 1889.

ASSESSMENT AND FINANCE.

28.—(1) The existing town council of Dumfries shall levy assessments for the year from the fifteenth day of May nineteen hundred and twenty-nine to the fifteenth day of May nineteen hundred and thirty and in so doing shall make provision for raising sufficient funds to defray all current debts and liabilities and the current expenditure to be incurred for the purposes of such town council and shall also levy a rate of such amount as is necessary to meet the amount specified in any certificate issued to them under the Rating (Scotland) Act 1926 and any such certificate shall have the same validity and effect as if it had been issued to the Corporation.

Provisions for levying of assessments by existing town councils.

(2) The existing town council of Maxwelltown shall levy assessments for the year from the fifteenth day of May nineteen hundred and twenty-nine to the fifteenth day of May nineteen hundred and thirty and in so doing shall make provision for raising sufficient funds to defray all current debts and liabilities and the current expenditure to be incurred for the purposes of such town council

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A.D. 1929. and shall also levy a rate of such amount as is necessary to meet the amount specified in any certificate issued to them under the Rating (Scotland) Act 1926 including provision for the amount of any certificate which may be issued by the county council of the stewartry to the Corporation in respect of the provision by that county council of the police force and other services for that part of the united burgh which consists of the existing burgh of Maxwelltown for that period and all certificates issued to the existing town council of Maxwelltown shall have the same validity and effect as if they had been issued to the Corporation.

(3) In the two foregoing subsections of this section the expression "the purposes of such town council" shall after the appointed day be deemed to include the purposes of the Corporation.

(4) All rates and assessments which prior to the commencement of this Order shall have been imposed assessed or levied by the existing town council of Dumfries or by the existing town council of Maxwelltown respectively under and in virtue of any Act and remaining unpaid together with all arrears penalties and costs incurred and due by any person to the existing town council of Dumfries or the existing town council of Maxwelltown or either of them shall be recoverable by the Corporation in the same way and to the same effect as if the said rates and assessments had been imposed assessed or levied by the Corporation.

Further
borrowing
and
assessing
power.

29. In addition to any powers of borrowing which the existing town councils and the county council and the education authority of the county and the county council and the education authority of the stewartry respectively now have and which may be exercised by them or any of them the Corporation and the county council and the education authority of the county or any of them may borrow such money as may be necessary for the purpose of any payments in respect of the transfer of property liabilities and compensation payable by any of them in consequence of this Order or of the Local Government (Adjustments) (Scotland) Act 1914 on the security of any assessment to be imposed assessed levied and recovered in the manner and along with and as part of the public health general assessment leviable under the Public Health (Scotland) Act 1897 or any Acts

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amending the same and the Corporation or the said county council or either of them may assign so much or such part as may be required of such assessment as security for the money which may be so borrowed under the provisions of this section provided that any money so borrowed shall be repaid in accordance with the provisions of the said Act of 1897. A.D. 1929.

30. All feu-duties ground annuals and rents at the appointed day imposed or due or payable to the existing town councils respectively may from and after the said date be collected and recovered by the Corporation. Provision as to feu-duties &c. due to existing town councils.

31. The portion of the valuation rolls in force in and applicable in the two burghs on the appointed day shall remain in full force and authority in the united burgh until the end of the year for which the said valuation rolls were made up and shall be and be deemed to be part of the valuation roll for the united burgh. Provisions as to valuation rolls.

WATER COMMISSIONERS AND JOINT COMMITTEES.

32. Notwithstanding anything contained in this Order the water commissioners and the bridge committee shall continue to exercise their respective functions until the appointed day and thereafter the water commissioners and the bridge committee shall be severally dissolved and the Corporation shall be and are hereby constituted the authority for carrying the Water Acts and the Bridge Order into execution in lieu and place of the water commissioners and the bridge committee respectively and the Water Acts and the Bridge Order shall be read and have effect accordingly. Water commissioners and bridge committee.

33. Subject to the provisions of this Order the undertaking authorised by the Water Acts and all property vested in held by or due or belonging to the water commissioners in terms of the Water Acts or the existing town councils in terms of the Bridge Order shall on and after the appointed day by virtue of this Order be transferred to vested in held by and be due and belong to the Corporation and shall form part of the property and assets of the Corporation for all the estate and interest therein of such water commissioners and the existing town councils respectively and shall be received and held and enjoyed by the Corporation accordingly and the Property of water commissioners and bridge committee.

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A.D. 1929. Corporation may exercise in relation to the property and rights so transferred to and vested in them all the powers which might have been exercised by the water commissioners the bridge committee and the existing town councils respectively prior to the appointed day.

Joint committees.

34. Notwithstanding anything contained in this Order the joint committees shall continue to exercise their respective functions until the appointed day and thereafter the joint committees shall be and are hereby dissolved and all agreements by which the same are constituted or relating thereto shall cease to have effect and all the powers and duties liabilities debts annuities obligations contracts and agreements of the joint committees shall thereafter be vested in imposed on and performed by the Corporation in lieu and place of the joint committees and all property vested in held by or due or belonging to the joint committees or any of them shall by virtue of this Order be transferred to vested in held by and be due and belong to the Corporation and shall form part of the property and assets of the Corporation for all the estate and interest therein of such joint committees respectively and shall be received and held and enjoyed by the Corporation accordingly.

Transfer of gas and electricity undertakings.

35. On the appointed day the gas and electricity undertakings belonging to and vested in and administered by the existing town council of Dumfries shall be transferred to and vested in the Corporation and all property rights powers duties debts and obligations at present belonging to or due by the existing town council of Dumfries in respect of the said undertakings shall be transferred to and vested in the Corporation.

Extension of gas limits.

36. The limits for the supply of gas by the existing town council of Dumfries under the Burghs Gas Supply (Scotland) Acts 1876 to 1918 are hereby as from the appointed day extended to and shall include the united burgh and all the provisions and obligations of the said Acts as the same are amended by this Order shall apply in all respects to the united burgh and to the lands and heritages therein in the same way and manner and to the same extent and effect as the said Acts obligations and provisions apply to the existing burgh of Dumfries.

37. After the appointed day the books and all other documents and vouchers of the water commissioners the bridge committee and the joint committees and the minutes of their proceedings and of the proceedings of their committees shall be the property of and be delivered to the Corporation and shall be the books documents and vouchers and minutes of the Corporation and in so far as they would be receivable at the commencement of this Order as evidence in all courts and elsewhere shall be receivable in the same manner and to the same effect as if this Order had not been passed.

A.D. 1929.

Books and documents belonging to Corporation.

MISCELLANEOUS.

38. All public roads streets highways footpaths lanes courts sewers and drains in the two burghs where vested in the existing town councils or either of them shall be and are hereby as from the appointed day transferred to and vested in the Corporation and the same shall subject to the provisions of this Order be held maintained managed and administered by the Corporation under the provisions of the public general Acts applicable thereto within the united burgh for the time being.

Transfer of roads streets &c.

39. The united burgh shall be deemed for all the purposes of any Act amending the laws relating to local government in Scotland which may have been passed prior to the commencement of this Order or which may be passed in the present or any following session of Parliament to have been or to be a burgh containing a population of twenty thousand or upwards within the police boundaries thereof and maintaining a separate police force for the united burgh at the passing of such Act and for the purpose of any provision of such Act relating to the payment of grants for the period ending fifteenth May nineteen hundred and thirty the united burgh shall be deemed to have been a burgh containing a population of twenty thousand or upwards within the police boundaries thereof as from the fifteenth May nineteen hundred and twenty-eight.

United burgh to be deemed to be a burgh of twenty thousand inhabitants for certain purposes.

40. On and after the sixteenth May nineteen hundred and twenty-nine so much of the education area of the

Education areas.

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A.D. 1929. — stewartry as is comprised in the existing burgh of Maxwelltown shall cease to form part of that education area and shall form part of the education area of the county.

Provisions
as to
education
authori-
ties &c.

41.—(1) On and after the sixteenth day of May nineteen hundred and twenty-nine the whole lands school buildings fittings and contents thereof and the whole assets of the education authority of the stewartry situated within the existing burgh of Maxwelltown shall be transferred to and become the property of the education authority of the county and the education authority of the county shall from and after the said date undertake and be responsible for the duties and liabilities effeiring to the said lands buildings assets and other so transferred and shall take over from the said date the teachers and other employees of the education authority of the stewartry employed in the schools within the existing burgh of Maxwelltown.

(2) In respect that the schools so transferred to the education authority of the county are at present attended by children whose parents reside outwith the boundaries of the existing burgh of Maxwelltown therefore for the period of ten years or such extended period thereafter as may be agreed upon between the two authorities from the sixteenth day of May nineteen hundred and twenty-nine the education authority of the county shall make provision free of charge for the education of such children which provision shall be equal to that now provided in Maxwelltown High School but shall not include provision for travelling facilities or other services outwith the schools but the education authority of the county shall not be obliged to make such provision for more than seventy-five such children below the advanced division or secondary stage And such children shall be admitted to the advanced division or first three years of the secondary department only if resident in the area presently served for primary education by the schools hereinafter mentioned that is to say Terregles Drumsleet Whinneyhill Kirkbean Newabbey Southwich Shawhead Lochrutton Loaningfoot and Beeswing and before being so admitted shall be certified by the education authority of the stewartry as fit for instruction in such advanced division or secondary department.

(3) In the event of the statutory age for school attendance being raised the foregoing subsection of this section shall be subject to any necessary modifications which failing agreement between the two authorities shall be determined by the Scottish Education Department. A.D. 1929.

(4) The two authorities shall make application forthwith to the Scottish Education Department to allocate to the education authority of the county such portion of the grant made under the grant regulations in respect of "excess teachers" and "students completing training" as is applicable to the schools within the existing burgh of Maxwelltown. In the event of no such allocation being made by the Scottish Education Department the two authorities shall make such allocation as may be agreed upon which shall continue so long as the existing grant regulations remain unchanged in principle as regards "excess teachers" and "students completing training." But should the grant regulations be altered or modified so as to exclude the principle of "excess teachers" and "students completing training" in calculating the amount of grant due to an education authority any payments under this section by the education authority of the stewartry to the education authority of the county shall cease.

(5) (a) On and after the sixteenth day of May nineteen hundred and twenty-nine the following three members of the education authority of the stewartry namely David Hutchison McGill Alexander Steel and the Reverend John Wilson shall cease to hold office as members of the said authority and they shall at the said date be and become members of the education authority of the county and shall be and continue as such until the fifteenth day of May nineteen hundred and thirty.

(b) On and after the sixteenth day of May nineteen hundred and twenty-nine the school management committee known as the Troqueer School Management Committee constituted under a scheme made by the education authority of the stewartry shall be and become a school management committee as if appointed under a scheme prepared by the education authority of the

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A.D. 1929. — county and shall be called the Maxwelltown School Management Committee and the said committee shall so act until the fifteenth day of May nineteen hundred and thirty.

(c) In the event of the death resignation or disqualification of any of the said three members during his period of office as a member of the education authority of the county the vacancy so caused shall be filled up in such manner as the Scottish Education Department may appoint.

(6) The education authority of the county shall pay to the education authority of the stewartry the proportion of the remuneration of the attendance officer in the employment of the education authority of the stewartry applicable in respect of his services within the existing burgh of Maxwelltown from and after the fifteenth day of May nineteen hundred and twenty-nine.

(7) The education authority of the county shall pay to the clerk of Troqueer School Management Committee in respect of any pecuniary loss sustained by him in consequence of the transfer to the education authority of the county of the schools in the existing burgh of Maxwelltown such compensation as may be agreed upon or as failing agreement may be determined in accordance with the section of this Order the marginal note of which is "Compensation" which section with the necessary modifications shall apply hereto.

(8) The financial and other adjustments provided for under this section shall come in place of any compensation which might be payable under the Local Government (Adjustments) (Scotland) Act 1914 or otherwise.

(9) Subject to the provisions of this section all questions or differences between the two authorities arising out of or in consequence of the provisions of this section shall be determined by the Secretary of State.

(10) In this section the expression "the two authorities" means the education authority of the county and the education authority of the stewartry.

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42. From the appointed day until the fifteenth day of May nineteen hundred and thirty the members of the parish councils of Dumfries and of Troqueer respectively who were elected for the wards of the existing burghs in November nineteen hundred and twenty-eight shall continue to hold office in the respective parish councils of Dumfries and of Troqueer as if this Order had not been confirmed.

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 Transitory
 provisions
 as to
 parish
 councillors.

43. The Secretary of State may in order to meet the circumstances arising in the united burgh under this Order by order at any time after the commencement of this Order vary the procedure prescribed by or in pursuance of the Temperance (Scotland) Act 1913 in connection with the taking of polls under the said Act or otherwise including any dates fixed in connection with such procedure.

As to polls
 under Tem-
 perance
 (Scotland)
 Act 1913.

44. All rights and duties to be exercised and performed by the existing town council of Dumfries and the existing town council of Maxwelltown under the Nith Navigation Act 1811 or under any Act or Order which may be passed relating to the navigation of the river Nith or any part thereof shall after the appointed day be exercised and performed by the Corporation and all debts and obligations due by or exigible from the existing burgh of Dumfries or the existing burgh of Maxwelltown in respect of the said Act of 1811 or any other such Act or Order shall be due by or exigible from the united burgh and all debts due to the said town councils in respect of the administration of the said Act or any other such Act or Order by any person prior to the appointed day may be demanded and recovered from such person and received and applied by the Corporation for the purposes of the said Act of 1811 or any other such Act or Order. The provost three senior bailies and dean of guild of the united burgh shall be members of the commissioners acting under the said Act of 1811 or any such other Act or Order in place of the provost three bailies and dean of guild of the existing burgh of Dumfries.

Nith navi-
 gation.

45. All rights and duties which are appointed to be exercised or performed by the existing town councils or any committee or committees appointed by the said

Old age
 pensions.

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A.D. 1929. town councils under the Old Age Pensions Act 1908 and Acts amending the same shall after the appointed day be exercised or performed by the Corporation in place of the existing town councils and the local pensions committees acting in the two burghs shall be dissolved and at the said meeting the Corporation shall at the meeting to be held on the eighth day of November nineteen hundred and twenty-nine or any adjournment thereof appoint a local pensions committee for the united burgh.

War pen-
sions com-
mittees.

46. The powers and duties of the local war pensions committees for the two burghs shall continue to a date to be fixed by the Minister of Pensions upon which date these powers and duties shall be taken over by the war pensions committee of the united burgh and the powers of the Minister of Pensions shall operate for the purposes of constituting or reconstituting a local war pensions committee for the united burgh in such manner as may be necessary in consequence of the provisions of this Order.

National
health
insurance
com-
mittee.

47.—(1) On and after the appointed day the two burghs shall be united and form one burgh for the purposes of the National Health Insurance Acts 1924 to 1928 and all references in any enactment regulation deed or other document to the insurance committee for the two burghs shall be construed as a reference to the insurance committee for the united burgh.

(2) The Corporation shall be entitled to exercise the powers with respect to the insurance committee for the united burgh which by virtue of the proviso to section 116 (1) (a) of the National Health Insurance Act 1924 were vested in a joint committee of the existing town councils with respect to the insurance committee for the two burghs.

(3) The Department of Health for Scotland may by order make such provisions as may be necessary for the purpose of carrying into effect the provisions of this section.

Library.

48. Notwithstanding anything contained in this Order all committees appointed by the existing town councils or either of them under the Libraries (Scotland) Act 1899 and Acts amending the same shall continue to exercise their functions until the appointed day and

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thereafter the said committees shall cease to exist and all rights and duties to be exercised or performed under the said Acts shall after the appointed day be exercised and performed by the Corporation. The Corporation at their first meeting shall appoint a committee consisting of such number of members of the Corporation and such number of householders in the united burgh as the Corporation may think fit. A.D. 1929.

49. Until the appointed day the licensing court and licensing appeal court of the stewartry shall continue to exercise their respective functions within the part of the united burgh consisting of the existing burgh of Maxwelltown and the licensing court and licensing appeal court of the existing burgh of Dumfries shall continue to exercise their respective functions within the part of the united burgh consisting of the existing burgh of Dumfries. Licensing court.

50. All certificates and licences under the Licensing (Scotland) Acts 1903 to 1921 granted before the appointed day by the competent licensing court for either of the two burghs shall unless the same be revoked or shall previously expire subsist and continue until the twenty-eighth day of May nineteen hundred and thirty but all prosecutions for offences against the Licensing (Scotland) Acts 1903 to 1921 or any of them or for any breach of the regulations or byelaws made under the said Acts shall be proceeded with in the same way as if such certificates had been originally granted by the licensing court of the united burgh and all applications for new certificates and for renewal or transfer of such certificates whether granted before or after the appointed day shall be disposed of at the licensing court of the united burgh. Provision as to subsisting licences.

51. All rights and duties immediately prior to the appointed day vested in and performed by quarter sessions of the peace and justices of the peace of the county and quarter sessions of the peace and justices of the peace of the stewartry respectively under the said Licensing (Scotland) Acts 1903 to 1921 within the two burghs shall after the appointed day be vested in and performed by quarter sessions of the peace and justices of the peace of the county. Quarter sessions.

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A.D. 1929. 52. Subject to and so far as is not inconsistent with
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 Byelaws. the provisions of this Order all byelaws rules and regula-
 tions and orders made by the existing town council of
 Dumfries or by any other public or local authority in
 force within the existing burgh of Dumfries immediately
 before the appointed day shall be applicable to the united
 burgh. All byelaws and regulations made by the existing
 town council of Maxwelltown or by any other public
 or local authority and in force within the existing burgh
 of Maxwelltown shall on the appointed day be repealed.

Shops 53. Any order which has been made by the existing
 Act 1912. town council of Dumfries under the provisions of the
 Shops Act 1912 and is in force in the existing burgh of
 Dumfries at the appointed day shall unless or until such
 order is annulled or revoked apply to the united burgh
 as if such order had been made by the Corporation and
 as if the Corporation were referred to therein instead of
 the local authority making such order and as if the area
 to which such order applied were the united burgh.

Petty 54. After the appointed day the right to collect the
 customs. dues or customs known as the "bridge dues" for goods
 and bestial passing the river Nith which is vested in the
 existing town council of Dumfries shall be abolished
 and the common good of the united burgh shall receive
 compensation therefor by payment of a capital sum of
 three thousand five hundred pounds and the Corporation
 may for the payment of the said capital sum borrow on
 the security of an assessment to be levied in the same
 manner as the public health general assessment and the
 said sum shall be repaid within a period of thirty years
 after the date of borrowing by means of a sinking fund
 in accordance with the provisions of section 48 of the
 Burgh Police (Scotland) Act 1903.

Saving for 55. Nothing in this Act shall affect the parliamentary
 election of divisions in which the two burghs are respectively
 members included at the commencement of this Order and the
 of Parlia- limits of the same respectively or the electors thereof so
 ment &c. far as regards the election of members to Parliament.

Saving of 56. Subject to the provisions of this Order the
 rights. inhabitants of the united burgh shall have possess and
 enjoy all the rights benefits immunities duties and advan-
 tages which are held possessed and enjoyed by the
 inhabitants of the two burghs respectively.

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57. Subject to the provisions of this Order all acts matters and things before the appointed day done under the powers and authorities of any Acts public and local applicable to the two burghs and the inhabitants thereof and which are at the said date good and valid and available and all conveyances leases mortgages bonds covenants deeds instruments contracts agreements obligations rights and remedies at the appointed day existing under the same shall be and continue as good valid and available for all the purposes and for and against all persons as if this Order had not been confirmed.

A.D. 1929.

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 Saving of
 agree-
 ments &c.

58. All actions suits prosecutions or other proceedings by or against the existing town councils respectively by reason of any matter or thing done before the appointed day may be continued commenced or prosecuted by or against the Corporation and all actions suits prosecutions or other proceedings by or against the county council of the stewartry or the education authority of the stewartry in respect of any matter concerning or relating to the existing burgh of Maxwelltown arising before the fifteenth day of May nineteen hundred and thirty may likewise be continued commenced or prosecuted by or against the Corporation or the education authority of the county as the case may be.

Action
 suits and
 prosecu-
 tions.

59. For the purposes of registration of writs the existing burgh of Maxwelltown shall on and after the appointed day be included in and form part of the division of the general register of sasines applicable to the county and shall cease for such purposes to be part of the division of the general register of sasines applicable to the stewartry subject always however to the proviso that the register of sasines for the existing burgh of Dumfries so long as it is maintained as a separate register shall continue to be the appropriate register for all writs relating to heritable subjects in the existing burgh of Maxwelltown which at present fall to be recorded therein and that this Order shall not restrict extend amplify or in any way affect the said burgh register for purposes of registration of writs or otherwise.

Registra-
 tion of
 writs.

60. Nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages

Saving
 rights of
 Crown.

[Ch. xxxi.] *Dumfries and* [19 & 20 GEO. 5.]
Maxwelltown Burghs Amalgamation Order
Confirmation Act, 1929.

A.D. 1929. — subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or exerciseable by the King's Majesty.

Repeal of laws inconsistent with this Order.

61. All laws statutes jurisdictions powers privileges and usages now in force in relation to the two burghs in so far as inconsistent or at variance with the provisions of this Order are subject to the provisions of this Order hereby repealed and extinguished.

Costs of Order.

62. All costs and charges preliminary to and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of any moneys to be borrowed for that purpose which moneys they are hereby authorised to borrow on the security of the general improvement rate of the united burgh and if paid out of borrowed money shall be repaid within five years from the commencement of this Order.

The SCHEDULE referred to in the foregoing Order.
(Referred to in the sections of this Order of which the marginal notes are respectively "Wards of the united burgh" and "Register of electors.")

FIRST WARD.

From a point in the middle line of the river Nith opposite the Moat Hostel steps following down the middle line of the river Nith to a point opposite the centre of Nith Street thence up the centre of Nith Street and Nith Place to the foot of High Street thence in a straight line up the centre of High Street passing on the south-west side of and excluding the Midsteeple Buildings to a point in the centre of High Street at Burns' Monument thence

[19 & 20 GEO. 5.] *Dumfries and* [Ch. xxxi.]
Maxwelltown Burghs Amalgamation Order
Confirmation Act, 1929.

along the centre of Saint Andrew's Street to Queensberry Street A.D. 1929.
thence along the centre of Queensberry Street to Academy Street —
thence along the centre of Academy Street to a point opposite
the Moat Hostel lodge gate and thence north-west to the point
of starting.

SECOND WARD.

From the point in the centre of the High Street at Burns Monument where it meets the first ward along the centre of Saint Andrew's Street to Queensberry Street thence along the centre of Queensberry Street to Academy Street thence along the centre of Academy Street to the aforementioned point opposite the Moat Hostel lodge gate thence along the centre of Lovers Walk to Saint Mary's Street thence along the centre of Saint Mary's Street to a point opposite the south boundary of Saint Mary's churchyard thence along the centre of the Annan Road to the top of Leafield Road thence along the centre of Leafield Road to a point opposite the roadway leading to Leafield Gardens thence along the centre of Leafield Gardens to Queen Street thence along the centre of Queen Street to English Street thence along the centre of English Street to the centre of High Street where it meets the first and third wards thence along High Street following the boundary of the first ward but including the Midsteeple Buildings to the point of starting.

THIRD WARD.

From the point in the middle line of the river Nith where it meets the boundary of the first ward opposite the centre of Nith Place following the boundary of the first ward across the Whitesands and up the centre of Nith Street along the centre of Nith Place and High Street to the fountain thence along the centre of English Street to the top of Queen Street thence down the centre of Queen Street to Brooms Road thence along the centre of Brooms Road to Glebe Street and along the centre of Glebe Street to opposite the south boundary of Holy Cross cemetery thence round the south boundaries of Holy Cross cemetery and Saint Michael's churchyard to Saint Michael Street thence across Saint Michael Street to the top of Swans Vennel thence along the centre of Swans Vennel and across the Dock Park in a straight line to the river Nith thence along the middle line of the river Nith to the point of starting opposite the centre of Nith Place.

FOURTH WARD.

From the point in the boundary of the united burgh where the old parliamentary boundary of the burgh of Dumfries crosses the middle line of the river Nith fifty-seven yards or thereby west from the north-west corner of Crindau House along the

[Ch. xxxi.] *Dumfries and* [19 & 20 GEO. 5.]
Maxwelltown Burghs Amalgamation Order
Confirmation Act, 1929.

A.D. 1929. — municipal boundary of the existing burgh of Dumfries north-east east and south to a point in the said boundary forty-nine yards or thereby north of the centre of the Bane Loaning where the said loaning is crossed by the said parliamentary boundary thence along the said parliamentary boundary to the point where it crosses the centre of Brooms Road thence along the centre of Brooms Road to the foot of Queen Street thence along the centre of Queen Street for a distance of seventy yards to a point opposite the roadway leading to Leafield Gardens thence along the centre of Leafield Gardens to Leafield Road thence along the centre of Leafield Road to the Annan Road thence along the centre of the Annan Road to a point opposite Saint Mary's Church where it meets the second ward thence following the boundary of the second ward along the centre of Saint Mary's Street and the centre of Lovers Walk to the river Nith thence along the middle line of the river Nith to the point of starting.

FIFTH WARD.

From the point in the said parliamentary boundary in Brooms Road where it joins the fourth ward along the centre of Brooms Road to Glebe Street thence following the boundary of the third ward along the centre of Glebe Street to the south boundary of Holy Cross cemetery along the south boundary of Holy Cross cemetery and the south boundary of Saint Michael's churchyard to Saint Michael Street thence across Saint Michael Street and along the centre of Swans Vennel to the river Nith thence along the middle line of the river Nith to the southern municipal boundary of the united burgh thence along the said southern boundary and along the eastern boundary to the point where the said parliamentary boundary crosses the south-east boundary of the poorhouse and thence along the said parliamentary boundary to the point of starting.

SIXTH WARD.

From a point forty-nine yards or thereby from the centre of Bane Loaning thereafter following the municipal boundary of the existing burgh of Dumfries to a point on the north side of the Annan Road one hundred yards or thereby east of the centre of the Brownrigg Loaning thereafter by Doctors Well along the north boundary of the railway line to a point forty yards or thereby east of Loganbarns Bridge thereafter south-west and west in a curving line parallel with the road leading from Loganbarns to Westfield to Essex Park House thereafter in an irregular line along the municipal boundary of the said burgh to a point one hundred and eighteen yards or thereby south-west of Northfield House thereafter following the line of the said boundary to Westfield House thereafter to the south-east boundary of the poorhouse thereafter along the old parliamentary boundary of the burgh of Dumfries to the point of starting.

[19 & 20 GEO. 5.] *Dumfries and* [Ch. xxxi.]
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SEVENTH WARD. .

A.D. 1929.

From a point in the middle line of the river Nith at the new bridge along the centre of Galloway Street to its junction with College Street thence along the centre of College Street to Well Street thence along the centre of Well Street to Glasgow Street thence along the centre of Glasgow Street to its junction with David Street thence along the centre of David Street to Terregles Street thence along the centre of Terregles Street to Laurieknowe thence along the centre of Laurieknowe and Castle Douglas Road to the point where the Castle Douglas Road crosses the boundary of the united burgh thence following the said boundary north and east to a point in the middle line of the river Nith fifty-seven yards or thereby west from the north-west corner of Crindau House and thence along the middle line of the river Nith to the point of starting.

EIGHTH WARD.

From a point in the middle line of the river Nith opposite the foot of Millbrae up the centre of Millbrae to Church Street thence along the centre of Church Street to its junction with Rotchell Road thence along the centre of Rotchell Road to its junction with Hermitage Drive thence along the centre of Hermitage Drive to its junction with Dalbeattie Road thence along the centre of Dalbeattie Road to the point where it crosses the boundary of the united burgh thence following the said boundary to the point where the Castle Douglas Road crosses the said boundary thence following the boundary of the seventh ward from that point to a point in the middle line of the river Nith at the new bridge thence along the middle line of the river Nith to the point of starting.

NINTH WARD.

From a point in the middle line of the river Nith opposite the foot of Millbrae thence following the boundary of the eighth ward to the point where the Dalbeattie Road crosses the municipal boundary of the existing burgh of Maxwelltown thence following the said boundary in a south-easterly and easterly direction to the point where it crosses the middle line of the river Nith thence following the middle line of the river Nith to the point of starting.

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